- A Christian wife doesn't inherit all her husband's property, only a predetermined share
- A Christian mother has no right on her deceased child's property. The father inherits all such property

PARSIS

- If a Parsi woman marries outside her religion, she must forsake her religious/social identity and forfeit all rights to Parsi customs and rituals as well as parental property
- A person can file for divorce if the spouse commits adultery, fornication, bigamy, rape or an unnatural act. But only if the application is filed within two years of the discovery of the fact
- Only a wife can claim maintenance and alimony
- If a Parsi man dies, the share of each son and the wife is double each daughter's share. If he dies leaving children but no wife, each son's share is double each daughter's. However, if a Parsi woman dies leaving her husband and children, each child and the husband receive equal shares
- There is no legislation for adoption. One can designate a "palak" son but only for ritual requirements. The adoptee has no property rights



TRIBALS

- All designated Scheduled Tribes areas follow customary practices and are excluded from the Hindu Marriage Act (HMA), 1955, and the Hindu Succession Act, 1956
- Polygamy and polyandry allowed
- In the matriarchal Garo and Khasi tribes in Meghalaya, the son-in-law comes to live with his in-laws after marriage. The youngest daughter inherits the property
- Santhali women can't inherit paternal property. Per Mizo law, the youngest son inherits the father's property. Daughters don't get a share, except when there are no sons

However, two INDIA members have expressed support for the UCC. AAP (Aam Aadmi Party) has announced in-principle support, while the Uddhav Thackeray faction of the Shiv Sena has also extended qualified support. Interestingly, days after AAP batted for the UCC, Punjab chief minister and senior AAP leader Bhagwant Mann targeted the BJP, saying it starts speaking of religion whenever elections draw near.

MIXED SIGNALS

The electoral intent behind the move is fairly transparent to everyone. Congress general secretary (communications) Jairam Ramesh sees the Law Commission's decision to revisit the issue despite the previous commission cautioning against its implementation as desperation on the part of the government to legitimise its polarising agenda. "Modi's call for a UCC nine months before the Lok Sabha election seems politically motivated," adds Sibal. "Nothing prevented this government from introducing legislation to this effect in the past nine years."

In the government's defence, Union law minister Arjun Ram Meghwal has said fresh consultation has been sought because of the relevance and importance of the issue. He also cites a technical ground for the 22nd Law Commission's notification: "The 21st Law Commission issued a consultation paper, but did not submit any report."

When asked, a senior member of the 21st Law Commission said they were not opposed to the UCC but felt its implementation would have been easier had the Supreme Court pushed it. "The government could draft a law on triple talaq without any protest because the top court already backed it," he says. "We felt that instead of the government taking the initiative and running into strong resistance, court-backed or piecemeal legislations would have been better given the apprehensions over the UCC."

However, the government itself has been sending contradictory signals. Two BJP members, Ashwini Kumar Upadhyay and Shazia Ilmi, moved the top court last year seeking a directive to Parliament to make uniform civil laws. In response to the court's notice, the law ministry asked the apex court to dismiss those petitions as Parliament exercises the sovereign